COMMERCIAL AGREEMENT - RECORD 021

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-021

1. Recitals and defined terms

This Service Level Schedule and Credit Ladder is made between Helioscope Robotics, Inc. as Provider and Union Port Handling LLC as Customer, a port drayage and handling business organised in New Jersey, contracting through Union Port Handling LLC. Union Port and the Provider have agreed that terms defined in the recitals and in Exhibit C carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

Under Article 18 (Assignment) of the Service Level Schedule and Credit Ladder, title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. By way of qualification, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. The Service Level Schedule and Credit Ladder reaches each of Union Port's 3 sites separately, which is how a port drayage and handling operator in New Jersey administers it. Where Union Port has raised a query the Provider has answered by reference to Article 5 (Delivery and Title), and the exchange is on the contract file.

Union Port and the Provider agree that each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. As between them, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Running 3 sites in port drayage and handling, Union Port takes this obligation at site level rather than centrally under the Service Level Schedule and Credit Ladder. Nothing in the Union Port negotiation history qualifies Article 6 (Fees and Payment), and a reviewer should not read the pre-signature drafts as doing so.

Except as Article 18 (Assignment) permits, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. As a remedy, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. 3 sites in New Jersey means Union Port applies the Service Level Schedule and Credit Ladder through its regional operations team rather than through head office. Administration of this obligation for Union Port sits with the account team rather than with central contracts, and Article 2 (Definitions) is where it is evidenced.

For the purposes of the Service Level Schedule and Credit Ladder, the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. As a matter of construction, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. In port drayage and handling the burden of this sits with operations, and Union Port discharges it across 3 sites under the Service Level Schedule and Credit Ladder. The obligation as it applies to Union Port was tightened at signature, and Article 4 (Orders and Quantities) carries the negotiated wording rather than the standard wording.

Union Port service level schedule - Schedule 5 - Notices, Periods and Addressees

Union Port notice type	Subject	Period	Addressee	Method	Deemed given
UNI-N001	assignment request	50 days	Contracts Manager	portal notice	on despatch
UNI-N002	service credit claim	35 days	designated account executive	email with acknowledgement	on receipt
UNI-N003	non-renewal	25 days	General Counsel	portal notice	on the second business day after despatch
UNI-N004	change of control	35 days	Chief Operating Officer	courier and email	on despatch
UNI-N005	change of control	25 days	General Counsel	portal notice	on the second business day after despatch
UNI-N006	renewal election	55 days	General Counsel	courier only	on the second business day after despatch
UNI-N007	assignment request	55 days	General Counsel	courier only	on receipt
UNI-N008	change of control	75 days	Contracts Manager	courier and email	on receipt
UNI-N009	price adjustment	60 days	General Counsel	courier only	on receipt
UNI-N010	service credit claim	65 days	General Counsel	email with	on receipt

Union Port notice type	Subject	Period	Addressee	Method	Deemed given
				acknowledgement	
UNI-N011	assignment request	90 days	designated account executive	courier only	on despatch
UNI-N012	breach	60 days	General Counsel	email with acknowledgement	on receipt
UNI-N013	force majeure	30 days	Contracts Manager	email with acknowledgement	on receipt
UNI-N014	force majeure	30 days	General Counsel	courier only	on receipt
UNI-N015	non-renewal	20 days	designated account executive	email with acknowledgement	on despatch
UNI-N016	breach	50 days	designated account executive	portal notice	on the second business day after despatch
UNI-N017	price adjustment	40 days	Contracts Manager	courier and email	on the second business day after despatch
UNI-N018	assignment request	15 days	Contracts Manager	portal notice	on receipt
UNI-N019	service credit claim	50 days	designated account executive	portal notice	on the second business day after despatch
UNI-N020	assignment request	65 days	Contracts Manager	email with acknowledgement	on despatch
UNI-N021	price adjustment	85 days	designated account executive	courier only	on receipt
UNI-N022	price adjustment	25 days	General Counsel	courier only	on the second business day after despatch
UNI-N023	change of control	90 days	Chief Operating Officer	courier and email	on receipt
UNI-N024	termination for cause	60 days	General Counsel	portal notice	on receipt
UNI-N025	renewal election	80 days	Contracts Manager	courier and email	on receipt
UNI-N026	assignment request	20 days	Contracts Manager	portal notice	on the second business day after despatch
UNI-N027	termination for cause	25 days	General Counsel	courier only	on despatch
UNI-N028	non-renewal	85 days	designated account executive	email with acknowledgement	on receipt
UNI-N029	change of control	10 days	General Counsel	portal notice	on despatch
UNI-N030	force majeure	40 days	Contracts Manager	email with acknowledgement	on despatch
UNI-N031	change of control	75 days	designated account executive	courier and email	on the second business day after despatch
UNI-N032	assignment request	90 days	General Counsel	portal notice	on receipt
UNI-N033	price adjustment	20 days	Chief Operating Officer	courier and email	on despatch
UNI-N034	force majeure	40 days	Contracts Manager	portal notice	on the second business day after despatch
UNI-N035	breach	15 days	designated account executive	portal notice	on despatch
UNI-N036	renewal election	5 days	Chief Operating Officer	courier and email	on the second business day after despatch
UNI-N037	termination for cause	10 days	General Counsel	courier and email	on the second business day after despatch
UNI-N038	breach	5 days	Contracts Manager	courier and email	on the second business day after despatch
UNI-N039	assignment request	90 days	Chief Operating Officer	portal notice	on receipt
UNI-N040	breach	40 days	designated account executive	courier and email	on despatch
UNI-N041	price adjustment	50 days	Contracts Manager	portal notice	on the second business day after despatch
UNI-N042	change of control	80 days	Chief Operating Officer	courier only	on the second business day after

Union Port notice type	Subject	Period	Addressee	Method	Deemed given
					despatch
UNI-N043	non-renewal	80 days	Contracts Manager	portal notice	on despatch
UNI-N044	termination for cause	75 days	designated account executive	email with acknowledgement	on receipt
UNI-N045	price adjustment	10 days	Contracts Manager	courier and email	on receipt
UNI-N046	non-renewal	15 days	Contracts Manager	courier only	on the second business day after despatch
UNI-N047	assignment request	30 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
UNI-N048	termination for cause	35 days	designated account executive	courier only	on receipt
UNI-N049	price adjustment	45 days	Chief Operating Officer	email with acknowledgement	on despatch
UNI-N050	non-renewal	30 days	General Counsel	courier only	on despatch
UNI-N051	service credit claim	85 days	Contracts Manager	courier only	on despatch
UNI-N052	force majeure	50 days	Chief Operating Officer	email with acknowledgement	on receipt
UNI-N053	force majeure	50 days	General Counsel	courier only	on receipt
UNI-N054	breach	10 days	Contracts Manager	courier and email	on receipt
UNI-N055	service credit claim	40 days	General Counsel	email with acknowledgement	on receipt
UNI-N056	renewal election	55 days	General Counsel	courier only	on despatch
UNI-N057	change of control	35 days	Chief Operating Officer	portal notice	on receipt
UNI-N058	service credit claim	45 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
UNI-N059	breach	65 days	General Counsel	courier only	on receipt
UNI-N060	non-renewal	20 days	Contracts Manager	courier and email	on the second business day after despatch
UNI-N061	service credit claim	30 days	Contracts Manager	courier only	on the second business day after despatch
UNI-N062	price adjustment	80 days	Chief Operating Officer	portal notice	on receipt
UNI-N063	termination for cause	25 days	General Counsel	email with acknowledgement	on despatch
UNI-N064	force majeure	65 days	Contracts Manager	email with acknowledgement	on despatch
UNI-N065	assignment request	85 days	designated account executive	email with acknowledgement	on despatch
UNI-N066	renewal election	25 days	Contracts Manager	courier and email	on the second business day after despatch
UNI-N067	service credit claim	70 days	Contracts Manager	email with acknowledgement	on despatch
UNI-N068	assignment request	90 days	designated account executive	portal notice	on the second business day after despatch
UNI-N069	non-renewal	55 days	designated account executive	courier and email	on the second business day after despatch
UNI-N070	renewal election	5 days	General Counsel	courier and email	on the second business day after despatch
UNI-N071	price adjustment	90 days	General Counsel	portal notice	on the second business day after despatch
UNI-N072	price adjustment	30 days	General Counsel	email with acknowledgement	on despatch
UNI-N073	force majeure	45 days	Contracts Manager	courier and email	on despatch
UNI-N074	non-renewal	40 days	designated account executive	courier and email	on despatch
UNI-N075	assignment request	85 days	designated account executive	courier and email	on despatch
UNI-N076	non-renewal	75 days	designated account	courier only	on receipt

Union Port notice type	Subject	Period	Addressee	Method	Deemed given
			executive		
UNI-N077	change of control	25 days	Contracts Manager	courier and email	on despatch
UNI-N078	assignment request	80 days	Chief Operating Officer	courier only	on the second business day after despatch

2. Scope of supply and orders

Union Port pays the fees under Schedule 2 in consideration of the Provider's undertaking that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. As a matter of construction, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. New Jersey is where Union Port runs port drayage and handling operations across 3 sites, and the Service Level Schedule and Credit Ladder follows that footprint. Because Union Port operates in port drayage and handling, the practical burden of this clause falls on its New Jersey operation, and Article 2 (Definitions) governs how it is measured.

Neither Union Port nor the Provider may treat Article 17 (Transition Assistance) as permitting the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Operationally, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. The Service Level Schedule and Credit Ladder reaches each of Union Port's 3 sites separately, which is how a port drayage and handling operator in New Jersey administers it. Notices under Article 2 (Definitions) go to the contracting entity named in the recital and not to any Union Port affiliate that may operate a site.

Union Port and the Provider agree that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. As drafted, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. In port drayage and handling the burden of this sits with operations, and Union Port discharges it across 3 sites under the Service Level Schedule and Credit Ladder. The Union Port relationship is managed against Article 6 (Fees and Payment) at each quarterly review, and any variance is minuted there rather than in the Order.

For the purposes of the Service Level Schedule and Credit Ladder, the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. On the negotiated text, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. This bites at Union Port's 3 sites, since a port drayage and handling operator administers the Service Level Schedule and Credit Ladder where the units work. Notices under Article 7 (Service Levels) go to the contracting entity named in the recital and not to any Union Port affiliate that may operate a site.

3. Delivery, title and risk

Article 9 (Customer Obligations) provides that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. On the mechanics, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. 3 sites in New Jersey means Union Port applies the Service Level Schedule and Credit Ladder through its regional operations team rather than through head office. Where Union Port has raised a query the Provider has answered by reference to Article 5 (Delivery and Title), and the exchange is on the contract file.

Union Port bears the risk that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. As a remedy, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Operating 3 sites, Union Port applies the Service Level Schedule and Credit Ladder at the point of delivery, as port drayage and handling practice requires. The Union Port relationship is managed against Article 20 (Notices) at each quarterly review, and any variance is minuted there rather than in the Order.

Article 8 (Acceptance) provides that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Practically, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Union Port runs 3 sites from New Jersey in port drayage and handling, so the Service Level Schedule and Credit Ladder is administered locally and this clause is applied per site. For a customer of Union Port's size the clause is unremarkable, but Article 15 (Limitation of Liability) is drafted more tightly here than in the Provider's standard form.

Union Port and the Provider agree that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. On the face of the clause, performance is measured against the exhibit and not against any statement made in the parties' correspondence. For Union Port, a port drayage and handling operator running 3 sites out of New Jersey, the point matters because the Service Level Schedule and Credit Ladder is administered site by site. For a customer of Union Port's size the clause is unremarkable, but Article 9 (Customer Obligations) is drafted more tightly here than in the Provider's standard form.

Union Port service level schedule - Exhibit A - Fee Schedule and Annual Escalator

Union Port fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
UNI-F001	tote carrier	12	$8,811	$105,732	2.6%	on renewal only
UNI-F002	fleet controller	13	$7,149	$92,937	2.7%	on renewal only
UNI-F003	gateway appliance	33	$6,826	$225,258	5.7%	not escalated
UNI-F004	tote carrier	18	$5,404	$97,272	2.6%	not escalated
UNI-F005	AMR-200 mobile unit	27	$3,994	$107,838	3.4%	annually on the anniversary
UNI-F006	fleet controller	35	$2,097	$73,395	2.6%	not escalated
UNI-F007	charge dock	4	$3,437	$13,748	4.0%	not escalated
UNI-F008	AMR-400 heavy unit	9	$3,763	$33,867	2.9%	annually each January
UNI-F009	gateway appliance	27	$9,845	$265,815	5.4%	annually each January
UNI-F010	AMR-200 mobile unit	6	$9,200	$55,200	2.6%	not escalated
UNI-F011	fleet controller	21	$8,452	$177,492	4.8%	annually on the anniversary
UNI-F012	AMR-400 heavy unit	3	$3,246	$9,738	5.6%	on renewal only
UNI-F013	charge dock	12	$8,617	$103,404	2.4%	not escalated
UNI-F014	charge dock	24	$5,198	$124,752	4.5%	annually on the anniversary
UNI-F015	tote carrier	21	$6,150	$129,150	2.8%	annually on the anniversary
UNI-F016	lift attachment	36	$7,569	$272,484	4.3%	annually on the anniversary
UNI-F017	charge dock	4	$2,458	$9,832	5.4%	not escalated
UNI-F018	AMR-400 heavy unit	35	$2,082	$72,870	3.2%	not escalated
UNI-F019	fleet controller	26	$5,511	$143,286	2.2%	annually on the anniversary
UNI-F020	tote carrier	32	$7,501	$240,032	5.4%	annually on the anniversary
UNI-F021	charge dock	41	$1,267	$51,947	4.1%	annually each January
UNI-F022	fleet controller	14	$2,858	$40,012	5.9%	on renewal only
UNI-F023	lift attachment	4	$4,240	$16,960	4.9%	not escalated
UNI-F024	gateway appliance	19	$7,962	$151,278	2.8%	not escalated
UNI-F025	lift attachment	26	$1,432	$37,232	3.1%	annually each January
UNI-F026	fleet controller	41	$9,421	$386,261	2.0%	annually on the anniversary
UNI-F027	safety scanner kit	5	$6,780	$33,900	2.0%	annually on the anniversary
UNI-F028	lift attachment	29	$1,790	$51,910	5.9%	annually on the anniversary
UNI-F029	gateway	33	$9,614	$317,262	3.7%	on renewal only

Union Port fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
	appliance					
UNI-F030	lift attachment	10	$5,958	$59,580	4.9%	not escalated
UNI-F031	gateway appliance	35	$8,694	$304,290	2.1%	annually on the anniversary
UNI-F032	AMR-400 heavy unit	8	$6,249	$49,992	3.6%	annually on the anniversary
UNI-F033	AMR-400 heavy unit	13	$5,244	$68,172	3.5%	on renewal only
UNI-F034	lift attachment	35	$5,454	$190,890	5.4%	on renewal only
UNI-F035	safety scanner kit	30	$2,189	$65,670	5.0%	annually on the anniversary
UNI-F036	lift attachment	2	$3,343	$6,686	2.1%	annually each January
UNI-F037	fleet controller	8	$6,415	$51,320	5.0%	on renewal only
UNI-F038	fleet controller	26	$2,506	$65,156	2.6%	annually on the anniversary
UNI-F039	charge dock	20	$7,211	$144,220	5.4%	annually each January
UNI-F040	lift attachment	25	$7,169	$179,225	5.9%	annually each January
UNI-F041	AMR-200 mobile unit	21	$8,238	$172,998	3.7%	not escalated
UNI-F042	AMR-400 heavy unit	13	$2,860	$37,180	4.1%	on renewal only
UNI-F043	charge dock	19	$7,141	$135,679	5.8%	on renewal only
UNI-F044	tote carrier	38	$2,961	$112,518	5.4%	on renewal only
UNI-F045	safety scanner kit	19	$2,965	$56,335	2.0%	on renewal only
UNI-F046	AMR-200 mobile unit	31	$9,413	$291,803	3.3%	not escalated
UNI-F047	safety scanner kit	40	$9,425	$377,000	4.0%	on renewal only
UNI-F048	lift attachment	5	$3,785	$18,925	2.8%	annually each January
UNI-F049	gateway appliance	30	$8,474	$254,220	5.5%	annually each January
UNI-F050	tote carrier	35	$7,863	$275,205	5.9%	on renewal only
UNI-F051	lift attachment	9	$3,276	$29,484	2.4%	annually each January
UNI-F052	gateway appliance	10	$5,609	$56,090	2.4%	annually on the anniversary
UNI-F053	lift attachment	2	$7,285	$14,570	5.4%	annually each January
UNI-F054	fleet controller	22	$1,316	$28,952	5.5%	on renewal only
UNI-F055	tote carrier	28	$1,875	$52,500	2.1%	not escalated
UNI-F056	tote carrier	7	$2,626	$18,382	2.8%	annually on the anniversary
UNI-F057	gateway appliance	41	$9,812	$402,292	2.5%	not escalated
UNI-F058	fleet controller	22	$1,216	$26,752	2.1%	on renewal only
UNI-F059	tote carrier	29	$6,677	$193,633	2.8%	not escalated
UNI-F060	lift attachment	35	$8,183	$286,405	4.8%	annually on the anniversary
UNI-F061	charge dock	31	$4,406	$136,586	4.0%	not escalated
UNI-F062	AMR-200 mobile unit	9	$9,630	$86,670	3.2%	annually on the anniversary
UNI-F063	charge dock	10	$3,582	$35,820	5.6%	annually each January
UNI-F064	charge dock	7	$6,861	$48,027	2.0%	annually each January
UNI-F065	AMR-400 heavy unit	40	$2,159	$86,360	5.5%	on renewal only
UNI-F066	AMR-200 mobile unit	40	$9,706	$388,240	3.5%	annually each January
UNI-F067	charge dock	33	$2,089	$68,937	4.6%	not escalated
UNI-F068	lift attachment	22	$9,789	$215,358	2.6%	annually each January
UNI-F069	fleet controller	4	$7,118	$28,472	2.3%	annually each January
UNI-F070	safety scanner kit	18	$1,232	$22,176	4.6%	not escalated
UNI-F071	safety scanner kit	25	$7,921	$198,025	2.7%	not escalated

Union Port fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
UNI-F072	safety scanner kit	25	$5,836	$145,900	2.0%	not escalated
UNI-F073	lift attachment	8	$1,187	$9,496	2.6%	on renewal only
UNI-F074	tote carrier	10	$1,371	$13,710	3.0%	on renewal only
UNI-F075	tote carrier	34	$1,917	$65,178	3.8%	annually on the anniversary
UNI-F076	fleet controller	8	$6,691	$53,528	5.7%	annually each January
UNI-F077	tote carrier	33	$7,916	$261,228	2.2%	annually on the anniversary
UNI-F078	charge dock	14	$1,974	$27,636	3.2%	not escalated
UNI-F079	gateway appliance	20	$7,754	$155,080	5.3%	annually on the anniversary
UNI-F080	fleet controller	16	$6,997	$111,952	5.4%	annually each January
UNI-F081	safety scanner kit	6	$1,508	$9,048	2.2%	not escalated
UNI-F082	safety scanner kit	22	$9,592	$211,024	2.3%	annually on the anniversary
UNI-F083	tote carrier	7	$1,352	$9,464	3.6%	annually on the anniversary
UNI-F084	fleet controller	5	$2,252	$11,260	2.9%	annually on the anniversary
UNI-F085	tote carrier	24	$2,402	$57,648	3.2%	on renewal only
UNI-F086	fleet controller	39	$6,049	$235,911	4.1%	annually each January
UNI-F087	lift attachment	32	$8,793	$281,376	4.6%	annually on the anniversary
UNI-F088	lift attachment	26	$3,144	$81,744	4.4%	not escalated

4. Fees, invoicing and escalation

Except as Article 8 (Acceptance) permits, a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. On timing, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. New Jersey is where Union Port runs port drayage and handling operations across 3 sites, and the Service Level Schedule and Credit Ladder follows that footprint. Union Port has taken the point up once since signature; the correspondence is filed against Article 7 (Service Levels) and did not result in an amendment.

Read with Exhibit C, spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. By design, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Running 3 sites in port drayage and handling, Union Port takes this obligation at site level rather than centrally under the Service Level Schedule and Credit Ladder. For a customer of Union Port's size the clause is unremarkable, but Article 6 (Fees and Payment) is drafted more tightly here than in the Provider's standard form.

The Provider has undertaken to Union Port that telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. As drafted, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. This bites at Union Port's 3 sites, since a port drayage and handling operator administers the Service Level Schedule and Credit Ladder where the units work. Where Union Port has raised a query the Provider has answered by reference to Article 4 (Orders and Quantities), and the exchange is on the contract file.

Union Port has agreed, and the Provider has accepted, that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. As a matter of construction, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Because Union Port is a New Jersey port drayage and handling business with 3 sites, the Service Level Schedule and Credit Ladder devolves this to the site manager. For a customer of Union Port's size the clause is unremarkable, but Article 8 (Acceptance) is drafted more tightly here than in the Provider's standard form.

5. Service levels and credits

Where Article 14 (Indemnities) applies, the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Operationally, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. For Union Port, a port drayage and handling operator running 3 sites out of New Jersey, the point matters because the Service Level Schedule and Credit Ladder is administered site by site. Administration of this obligation for Union Port sits with the account team rather than with central contracts, and Article 5 (Delivery and Title) is where it is evidenced.

The parties have recorded in Exhibit B that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. As a remedy, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Site count matters here: Union Port has 3 sites, and the Service Level Schedule and Credit Ladder treats each as a separate delivery point. Where Union Port has raised a query the Provider has answered by reference to Article 18 (Assignment), and the exchange is on the contract file.

Subject to Article 2 (Definitions), acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. Practically, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Operating 3 sites, Union Port applies the Service Level Schedule and Credit Ladder at the point of delivery, as port drayage and handling practice requires. Administration of this obligation for Union Port sits with the account team rather than with central contracts, and Article 10 (Change Control) is where it is evidenced.

Neither Union Port nor the Provider may treat Article 8 (Acceptance) as permitting acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. Per the amendment history, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Site count matters here: Union Port has 3 sites, and the Service Level Schedule and Credit Ladder treats each as a separate delivery point. Where Union Port has raised a query the Provider has answered by reference to Article 13 (Licences), and the exchange is on the contract file.

6. Acceptance and change control

Article 14 (Indemnities) of the Service Level Schedule and Credit Ladder is to be construed so that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Per the amendment history, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. For Union Port, a port drayage and handling operator running 3 sites out of New Jersey, the point matters because the Service Level Schedule and Credit Ladder is administered site by site. For a customer of Union Port's size the clause is unremarkable, but Article 16 (Term and Termination) is drafted more tightly here than in the Provider's standard form.

Union Port may require that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. As to enforcement, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. 3 sites in New Jersey means Union Port applies the Service Level Schedule and Credit Ladder through its regional operations team rather than through head office. The Union Port relationship is managed against Article 21 (Governing Law and Disputes) at each quarterly review, and any variance is minuted there rather than in the Order.

The Provider has undertaken to Union Port that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. As between them, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. The Service Level Schedule and Credit Ladder reaches each of Union Port's 3 sites separately, which is how a port drayage and handling operator in New Jersey administers it. Union Port has taken the point up once since signature; the correspondence is filed against Article 7 (Service Levels) and did not result in an amendment.

Union Port may require that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Materially, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Union Port treats the obligation as a

site-level matter across its 3 sites in New Jersey, consistent with the Service Level Schedule and Credit Ladder. Union Port has taken the point up once since signature; the correspondence is filed against Article 7 (Service Levels) and did not result in an amendment.

Union Port service level schedule - Schedule 2 - Sites and Operating Patterns

Union Port site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
UNI-S001	Fathom facility	28	2024-09-03	single shift	shared	pending acceptance
UNI-S002	Evergreen facility	31	2025-05-04	continuous	Customer furnished	accepted with punch list
UNI-S003	Mesa facility	4	2026-03-09	two shifts	shared	not commenced
UNI-S004	Crestline facility	8	2025-12-06	two shifts	Provider furnished	accepted with punch list
UNI-S005	Evergreen facility	34	2024-04-15	two shifts	shared	accepted with punch list
UNI-S006	Dayton facility	31	2025-04-06	continuous	shared	accepted
UNI-S007	Meridian facility	39	2024-08-15	continuous	Customer furnished	accepted with punch list
UNI-S008	Keystone facility	35	2026-04-24	single shift	shared	accepted with punch list
UNI-S009	Dunbar facility	29	2024-07-08	two shifts	Provider furnished	accepted with punch list
UNI-S010	Harborline facility	29	2025-09-15	continuous	Provider furnished	accepted with punch list
UNI-S011	Meridian facility	27	2026-11-07	single shift	Customer furnished	accepted with punch list
UNI-S012	Dayton facility	15	2024-11-07	single shift	Provider furnished	accepted
UNI-S013	Dunbar facility	35	2024-09-22	single shift	Customer furnished	pending acceptance
UNI-S014	Granite facility	15	2025-03-19	continuous	Customer furnished	accepted with punch list
UNI-S015	Meridian facility	6	2024-06-23	single shift	Customer furnished	accepted with punch list
UNI-S016	Granite facility	33	2026-05-07	two shifts	Provider furnished	accepted
UNI-S017	Dunbar facility	10	2025-05-16	single shift	Provider furnished	accepted with punch list
UNI-S018	Crestline facility	18	2025-03-08	continuous	Provider furnished	accepted
UNI-S019	Crestline facility	18	2024-11-18	two shifts	Provider furnished	accepted with punch list
UNI-S020	Keystone facility	17	2026-04-08	continuous	Provider furnished	pending acceptance
UNI-S021	Harborline facility	6	2024-05-05	single shift	shared	accepted with punch list
UNI-S022	Mesa facility	20	2026-09-07	two shifts	shared	not commenced
UNI-S023	Juniper facility	18	2025-12-27	continuous	shared	not commenced
UNI-S024	Keystone facility	34	2024-08-12	continuous	Customer furnished	accepted with punch list
UNI-S025	Dunbar facility	31	2026-08-03	single shift	Customer furnished	accepted with punch list
UNI-S026	Fathom facility	5	2025-05-06	continuous	Customer furnished	not commenced
UNI-S027	Mesa facility	9	2025-08-23	two shifts	Customer furnished	not commenced
UNI-S028	Dayton facility	6	2024-01-23	continuous	shared	pending acceptance
UNI-S029	Evergreen facility	9	2024-07-15	two shifts	Customer furnished	not commenced
UNI-S030	Granite facility	5	2024-03-23	two shifts	Provider furnished	not commenced
UNI-S031	Crestline facility	10	2026-12-19	two shifts	Customer furnished	accepted with punch list
UNI-S032	Granite facility	23	2025-12-25	single shift	shared	not commenced
UNI-S033	Keystone facility	29	2025-04-19	single shift	Customer furnished	not commenced
UNI-S034	Dayton facility	32	2026-03-14	two shifts	shared	accepted

Union Port site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
UNI-S035	Juniper facility	31	2025-08-27	continuous	Provider furnished	pending acceptance
UNI-S036	Crestline facility	31	2025-08-21	single shift	Customer furnished	not commenced
UNI-S037	Dunbar facility	10	2024-03-21	single shift	shared	pending acceptance
UNI-S038	Granite facility	6	2024-07-09	two shifts	Customer furnished	accepted
UNI-S039	Keystone facility	35	2025-05-28	continuous	Customer furnished	pending acceptance
UNI-S040	Crestline facility	35	2026-02-05	two shifts	Customer furnished	accepted
UNI-S041	Keystone facility	33	2024-11-26	two shifts	Customer furnished	accepted
UNI-S042	Fathom facility	13	2026-04-10	single shift	Customer furnished	accepted with punch list
UNI-S043	Keystone facility	22	2024-10-17	continuous	Provider furnished	not commenced
UNI-S044	Dayton facility	10	2024-04-12	single shift	Customer furnished	accepted with punch list
UNI-S045	Mesa facility	37	2025-01-07	single shift	shared	accepted
UNI-S046	Dayton facility	21	2024-04-02	continuous	shared	accepted
UNI-S047	Juniper facility	30	2024-01-17	two shifts	Customer furnished	not commenced
UNI-S048	Larkspur facility	25	2026-06-24	continuous	Provider furnished	not commenced
UNI-S049	Evergreen facility	36	2025-04-06	two shifts	shared	accepted with punch list
UNI-S050	Meridian facility	18	2025-09-24	single shift	Customer furnished	accepted
UNI-S051	Keystone facility	30	2024-01-25	single shift	Customer furnished	not commenced
UNI-S052	Dayton facility	31	2024-02-18	two shifts	Customer furnished	pending acceptance
UNI-S053	Larkspur facility	12	2024-08-24	continuous	Customer furnished	accepted with punch list
UNI-S054	Crestline facility	38	2025-08-23	two shifts	Customer furnished	accepted with punch list
UNI-S055	Dayton facility	36	2025-08-13	continuous	shared	pending acceptance
UNI-S056	Crestline facility	24	2024-02-06	single shift	Customer furnished	not commenced
UNI-S057	Mesa facility	8	2025-10-12	two shifts	shared	accepted with punch list
UNI-S058	Mesa facility	4	2025-12-11	single shift	Provider furnished	not commenced
UNI-S059	Fathom facility	8	2024-07-16	single shift	Customer furnished	pending acceptance
UNI-S060	Larkspur facility	35	2025-03-12	continuous	Customer furnished	accepted with punch list
UNI-S061	Keystone facility	25	2024-10-08	continuous	Provider furnished	accepted
UNI-S062	Evergreen facility	31	2026-06-03	continuous	Provider furnished	accepted with punch list
UNI-S063	Juniper facility	30	2025-06-09	two shifts	Provider furnished	pending acceptance
UNI-S064	Mesa facility	5	2025-05-22	two shifts	Provider furnished	accepted
UNI-S065	Crestline facility	17	2025-11-10	two shifts	Customer furnished	accepted with punch list
UNI-S066	Harborline facility	24	2026-04-20	two shifts	Customer furnished	accepted with punch list
UNI-S067	Larkspur facility	18	2025-02-19	single shift	Customer furnished	pending acceptance
UNI-S068	Dayton facility	7	2024-10-17	single shift	Provider furnished	accepted
UNI-S069	Larkspur facility	16	2025-12-06	single shift	shared	accepted with punch list
UNI-S070	Harborline	16	2026-12-17	continuous	Provider	not commenced

Union Port site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
	facility				furnished	
UNI-S071	Evergreen facility	13	2025-12-24	continuous	Provider furnished	accepted with punch list
UNI-S072	Juniper facility	17	2024-10-06	continuous	Customer furnished	accepted
UNI-S073	Granite facility	10	2024-05-21	single shift	Provider furnished	accepted
UNI-S074	Keystone facility	5	2024-12-14	continuous	Provider furnished	pending acceptance
UNI-S075	Meridian facility	34	2026-10-03	two shifts	Provider furnished	accepted with punch list
UNI-S076	Fathom facility	13	2024-04-08	continuous	Provider furnished	pending acceptance
UNI-S077	Larkspur facility	4	2024-12-05	single shift	Customer furnished	accepted with punch list
UNI-S078	Fathom facility	4	2026-02-13	continuous	Provider furnished	not commenced
UNI-S079	Larkspur facility	21	2026-03-24	single shift	Provider furnished	accepted
UNI-S080	Juniper facility	6	2024-12-16	two shifts	Customer furnished	accepted
UNI-S081	Crestline facility	22	2024-03-13	single shift	Customer furnished	accepted
UNI-S082	Meridian facility	8	2026-09-26	single shift	shared	not commenced
UNI-S083	Evergreen facility	33	2025-01-13	two shifts	Provider furnished	accepted with punch list
UNI-S084	Meridian facility	10	2025-06-04	two shifts	shared	accepted

7. Data, intellectual property and licences

Union Port retains the right, notwithstanding Article 6 (Fees and Payment), to require that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Negotiated position: a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Because Union Port is a New Jersey port drayage and handling business with 3 sites, the Service Level Schedule and Credit Ladder devolves this to the site manager. Nothing in the Union Port negotiation history qualifies Article 17 (Transition Assistance), and a reviewer should not read the pre-signature drafts as doing so.

Union Port retains the right, notwithstanding Article 21 (Governing Law and Disputes), to require that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Intended effect: the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Running 3 sites in port drayage and handling, Union Port takes this obligation at site level rather than centrally under the Service Level Schedule and Credit Ladder. Because Union Port operates in port drayage and handling, the practical burden of this clause falls on its New Jersey operation, and Article 8 (Acceptance) governs how it is measured.

Article 15 (Limitation of Liability) provides that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. Per the amendment history, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Running 3 sites in port drayage and handling, Union Port takes this obligation at site level rather than centrally under the Service Level Schedule and Credit Ladder. For a customer of Union Port's size the clause is unremarkable, but Article 10 (Change Control) is drafted more tightly here than in the Provider's standard form.

Union Port retains the right, notwithstanding Article 3 (Scope of Supply), to require that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. On any reading, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. 3 sites in New Jersey means Union Port applies the Service Level Schedule and Credit Ladder through its regional operations team rather than through head office. Notices under

Article 3 (Scope of Supply) go to the contracting entity named in the recital and not to any Union Port affiliate that may operate a site.

8. Indemnities and limitation of liability

Union Port and the Provider agree that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. In effect, performance is measured against the exhibit and not against any statement made in the parties' correspondence. For Union Port, a port drayage and handling operator running 3 sites out of New Jersey, the point matters because the Service Level Schedule and Credit Ladder is administered site by site. The Union Port relationship is managed against Article 14 (Indemnities) at each quarterly review, and any variance is minuted there rather than in the Order.

Union Port and the Provider agree that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. By way of qualification, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Site count matters here: Union Port has 3 sites, and the Service Level Schedule and Credit Ladder treats each as a separate delivery point. The Union Port file records the position as at the last amendment, and Article 13 (Licences) is the reference a reviewer should cite when raising it.

Under Article 16 (Term and Termination) of the Service Level Schedule and Credit Ladder, the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. As a remedy, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. The Service Level Schedule and Credit Ladder reaches each of Union Port's 3 sites separately, which is how a port drayage and handling operator in New Jersey administers it. Where Union Port has raised a query the Provider has answered by reference to Article 2 (Definitions), and the exchange is on the contract file.

Under Article 11 (Data and Telemetry) of the Service Level Schedule and Credit Ladder, confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. In substance, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. New Jersey is where Union Port runs port drayage and handling operations across 3 sites, and the Service Level Schedule and Credit Ladder follows that footprint. Where Union Port has raised a query the Provider has answered by reference to Article 8 (Acceptance), and the exchange is on the contract file.

Union Port service level schedule - Schedule 3 - Deployment Milestones and Payment Triggers

Union Port milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
UNI-M001	network readiness certified	2025-08	6	network provisioning	$108,589	invoiceable on certification
UNI-M002	pilot acceptance	2024-07	20	seasonal freeze	$174,870	invoiceable on certification
UNI-M003	steady-state handover	2026-06	on plan	no delay	$106,258	invoiceable on certification
UNI-M004	site survey complete	2025-05	13	network provisioning	$218,138	no payment attached
UNI-M005	full acceptance	2025-07	18	Customer IT dependency	$42,589	no payment attached
UNI-M006	network readiness certified	2025-09	3	facility readiness	$200,560	no payment attached
UNI-M007	integration test passed	2026-06	21	labour agreement	$175,310	invoiceable on certification
UNI-M008	pilot acceptance	2025-07	1	Customer IT dependency	$229,177	invoiceable on acceptance
UNI-M009	site survey complete	2026-06	on plan	facility readiness	$104,143	no payment attached
UNI-M010	full acceptance	2024-05	3	Customer IT dependency	$168,435	invoiceable on acceptance
UNI-M011	integration test passed	2024-01	10	labour agreement	$84,632	invoiceable on certification

Union Port milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
UNI-M012	warranty commencement	2025-10	19	network provisioning	$269,332	invoiceable on certification
UNI-M013	full acceptance	2026-03	4	seasonal freeze	$148,686	no payment attached
UNI-M014	pilot acceptance	2024-07	3	no delay	$166,198	invoiceable on acceptance
UNI-M015	full acceptance	2024-08	26	no delay	$40,452	invoiceable on certification
UNI-M016	steady-state handover	2026-12	19	no delay	$206,826	no payment attached
UNI-M017	network readiness certified	2025-05	19	no delay	$144,092	no payment attached
UNI-M018	steady-state handover	2025-08	14	seasonal freeze	$167,928	invoiceable on acceptance
UNI-M019	units delivered	2025-05	20	Customer IT dependency	$36,496	invoiceable on certification
UNI-M020	site survey complete	2024-01	7	facility readiness	$120,557	invoiceable on acceptance
UNI-M021	warranty commencement	2025-12	9	network provisioning	$16,646	invoiceable on certification
UNI-M022	steady-state handover	2024-02	11	seasonal freeze	$67,971	invoiceable on certification
UNI-M023	site survey complete	2025-06	11	network provisioning	$248,308	invoiceable on certification
UNI-M024	pilot acceptance	2024-01	on plan	Customer IT dependency	$198,573	invoiceable on acceptance
UNI-M025	site survey complete	2025-06	26	network provisioning	$33,316	invoiceable on certification
UNI-M026	full acceptance	2024-07	12	network provisioning	$241,595	invoiceable on acceptance
UNI-M027	pilot acceptance	2025-03	12	labour agreement	$263,049	no payment attached
UNI-M028	warranty commencement	2024-06	7	facility readiness	$73,661	no payment attached
UNI-M029	warranty commencement	2025-09	12	labour agreement	$82,631	invoiceable on certification
UNI-M030	pilot acceptance	2025-04	4	no delay	$224,875	no payment attached
UNI-M031	steady-state handover	2024-01	3	seasonal freeze	$193,943	no payment attached
UNI-M032	full acceptance	2025-02	13	Customer IT dependency	$154,821	invoiceable on acceptance
UNI-M033	warranty commencement	2024-08	19	no delay	$161,259	invoiceable on acceptance
UNI-M034	steady-state handover	2024-03	16	Customer IT dependency	$167,114	invoiceable on acceptance
UNI-M035	integration test passed	2025-08	31	network provisioning	$44,462	invoiceable on acceptance
UNI-M036	site survey complete	2025-08	33	no delay	$255,109	no payment attached
UNI-M037	pilot acceptance	2026-02	10	labour agreement	$153,381	no payment attached
UNI-M038	units delivered	2025-09	31	facility readiness	$86,240	no payment attached
UNI-M039	steady-state handover	2026-12	9	Customer IT dependency	$259,138	no payment attached
UNI-M040	pilot acceptance	2026-02	11	seasonal freeze	$244,175	invoiceable on certification
UNI-M041	units delivered	2026-09	5	seasonal freeze	$81,917	invoiceable on certification
UNI-M042	full acceptance	2024-07	32	seasonal freeze	$19,159	invoiceable on certification
UNI-M043	integration test passed	2026-05	19	network provisioning	$264,052	invoiceable on certification
UNI-M044	integration test passed	2025-01	1	seasonal freeze	$42,643	no payment attached
UNI-M045	steady-state handover	2025-05	11	no delay	$40,129	invoiceable on acceptance

Union Port milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
UNI-M046	integration test passed	2026-01	10	seasonal freeze	$256,862	invoiceable on certification
UNI-M047	pilot acceptance	2026-12	7	labour agreement	$165,305	invoiceable on acceptance
UNI-M048	network readiness certified	2024-04	24	network provisioning	$259,061	no payment attached
UNI-M049	pilot acceptance	2024-03	8	facility readiness	$153,898	invoiceable on acceptance
UNI-M050	warranty commencement	2026-11	18	no delay	$150,374	no payment attached
UNI-M051	pilot acceptance	2026-03	12	no delay	$181,797	invoiceable on acceptance
UNI-M052	full acceptance	2024-01	8	facility readiness	$80,093	no payment attached
UNI-M053	pilot acceptance	2026-07	9	seasonal freeze	$14,783	invoiceable on certification
UNI-M054	steady-state handover	2025-02	20	no delay	$69,954	invoiceable on certification
UNI-M055	network readiness certified	2026-03	29	seasonal freeze	$113,972	invoiceable on acceptance
UNI-M056	steady-state handover	2025-03	10	no delay	$107,205	invoiceable on certification
UNI-M057	pilot acceptance	2026-01	27	network provisioning	$264,395	invoiceable on certification
UNI-M058	units delivered	2024-06	9	Customer IT dependency	$230,347	invoiceable on certification
UNI-M059	network readiness certified	2025-07	11	no delay	$120,973	invoiceable on certification
UNI-M060	pilot acceptance	2025-07	15	facility readiness	$84,018	invoiceable on certification
UNI-M061	units delivered	2024-10	29	Customer IT dependency	$252,380	invoiceable on certification
UNI-M062	steady-state handover	2024-09	21	labour agreement	$192,334	no payment attached
UNI-M063	warranty commencement	2025-12	19	seasonal freeze	$53,147	invoiceable on certification
UNI-M064	network readiness certified	2024-02	31	seasonal freeze	$100,371	invoiceable on certification
UNI-M065	warranty commencement	2025-05	17	network provisioning	$108,041	invoiceable on acceptance
UNI-M066	warranty commencement	2024-07	13	network provisioning	$147,587	no payment attached
UNI-M067	steady-state handover	2024-05	23	network provisioning	$25,694	invoiceable on acceptance
UNI-M068	integration test passed	2026-07	23	Customer IT dependency	$42,947	invoiceable on acceptance
UNI-M069	pilot acceptance	2024-10	31	labour agreement	$137,142	invoiceable on acceptance
UNI-M070	site survey complete	2024-03	18	facility readiness	$54,413	no payment attached
UNI-M071	steady-state handover	2024-11	31	labour agreement	$247,512	invoiceable on acceptance
UNI-M072	full acceptance	2024-12	on plan	no delay	$130,213	invoiceable on acceptance
UNI-M073	steady-state handover	2025-10	32	no delay	$15,887	invoiceable on certification
UNI-M074	units delivered	2025-05	7	no delay	$134,304	no payment attached
UNI-M075	steady-state handover	2024-09	31	facility readiness	$271,767	no payment attached
UNI-M076	steady-state handover	2024-08	33	seasonal freeze	$80,874	invoiceable on certification
UNI-M077	site survey complete	2026-04	16	network provisioning	$52,610	no payment attached
UNI-M078	warranty commencement	2024-02	30	facility readiness	$230,279	no payment attached
UNI-M079	warranty commencement	2024-10	11	no delay	$163,509	invoiceable on acceptance

Union Port milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
UNI-M080	units delivered	2025-06	24	no delay	$116,817	no payment attached
UNI-M081	network readiness certified	2025-03	27	Customer IT dependency	$148,649	invoiceable on acceptance
UNI-M082	units delivered	2024-10	22	facility readiness	$100,720	invoiceable on certification
UNI-M083	warranty commencement	2026-07	29	seasonal freeze	$95,361	no payment attached
UNI-M084	units delivered	2024-12	18	facility readiness	$110,431	no payment attached
UNI-M085	units delivered	2025-04	26	labour agreement	$194,310	invoiceable on acceptance
UNI-M086	site survey complete	2025-04	18	facility readiness	$256,675	invoiceable on acceptance

9. Term, termination and transition

Read with Schedule 2, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. In application, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Operating 3 sites, Union Port applies the Service Level Schedule and Credit Ladder at the point of delivery, as port drayage and handling practice requires. Administration of this obligation for Union Port sits with the account team rather than with central contracts, and Article 11 (Data and Telemetry) is where it is evidenced.

Union Port Handling LLC undertakes that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. Intended effect: the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. New Jersey is where Union Port runs port drayage and handling operations across 3 sites, and the Service Level Schedule and Credit Ladder follows that footprint. Nothing in the Union Port negotiation history qualifies Article 4 (Orders and Quantities), and a reviewer should not read the pre-signature drafts as doing so.

Under Article 20 (Notices) of the Service Level Schedule and Credit Ladder, the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Intended effect: the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Running 3 sites in port drayage and handling, Union Port takes this obligation at site level rather than centrally under the Service Level Schedule and Credit Ladder. The Union Port file records the position as at the last amendment, and Article 5 (Delivery and Title) is the reference a reviewer should cite when raising it.

Under Article 10 (Change Control) of the Service Level Schedule and Credit Ladder, the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. In terms of consequence, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Site count matters here: Union Port has 3 sites, and the Service Level Schedule and Credit Ladder treats each as a separate delivery point. The Union Port relationship is managed against Article 18 (Assignment) at each quarterly review, and any variance is minuted there rather than in the Order.

10. Assignment, notices and general

Union Port is not obliged, under Exhibit B, to accept that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. By way of qualification, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. In port drayage and handling the burden of this sits with operations, and Union Port discharges it across 3 sites under the Service Level Schedule and Credit Ladder. Notices under Article 9 (Customer Obligations) go to the contracting entity named in the recital and not to any Union Port affiliate that may operate a site.

Nothing in Exhibit B entitles Union Port to assume that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. On the face of

the clause, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Operating 3 sites, Union Port applies the Service Level Schedule and Credit Ladder at the point of delivery, as port drayage and handling practice requires. Because Union Port operates in port drayage and handling, the practical burden of this clause falls on its New Jersey operation, and Article 20 (Notices) governs how it is measured.

On the terms of Schedule 3, spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. As to enforcement, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Site count matters here: Union Port has 3 sites, and the Service Level Schedule and Credit Ladder treats each as a separate delivery point. Where Union Port has raised a query the Provider has answered by reference to Article 20 (Notices), and the exchange is on the contract file.

Under Article 10 (Change Control) of the Service Level Schedule and Credit Ladder, spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. In substance, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Because Union Port is a New Jersey port drayage and handling business with 3 sites, the Service Level Schedule and Credit Ladder devolves this to the site manager. Because Union Port operates in port drayage and handling, the practical burden of this clause falls on its New Jersey operation, and Article 16 (Term and Termination) governs how it is measured.